

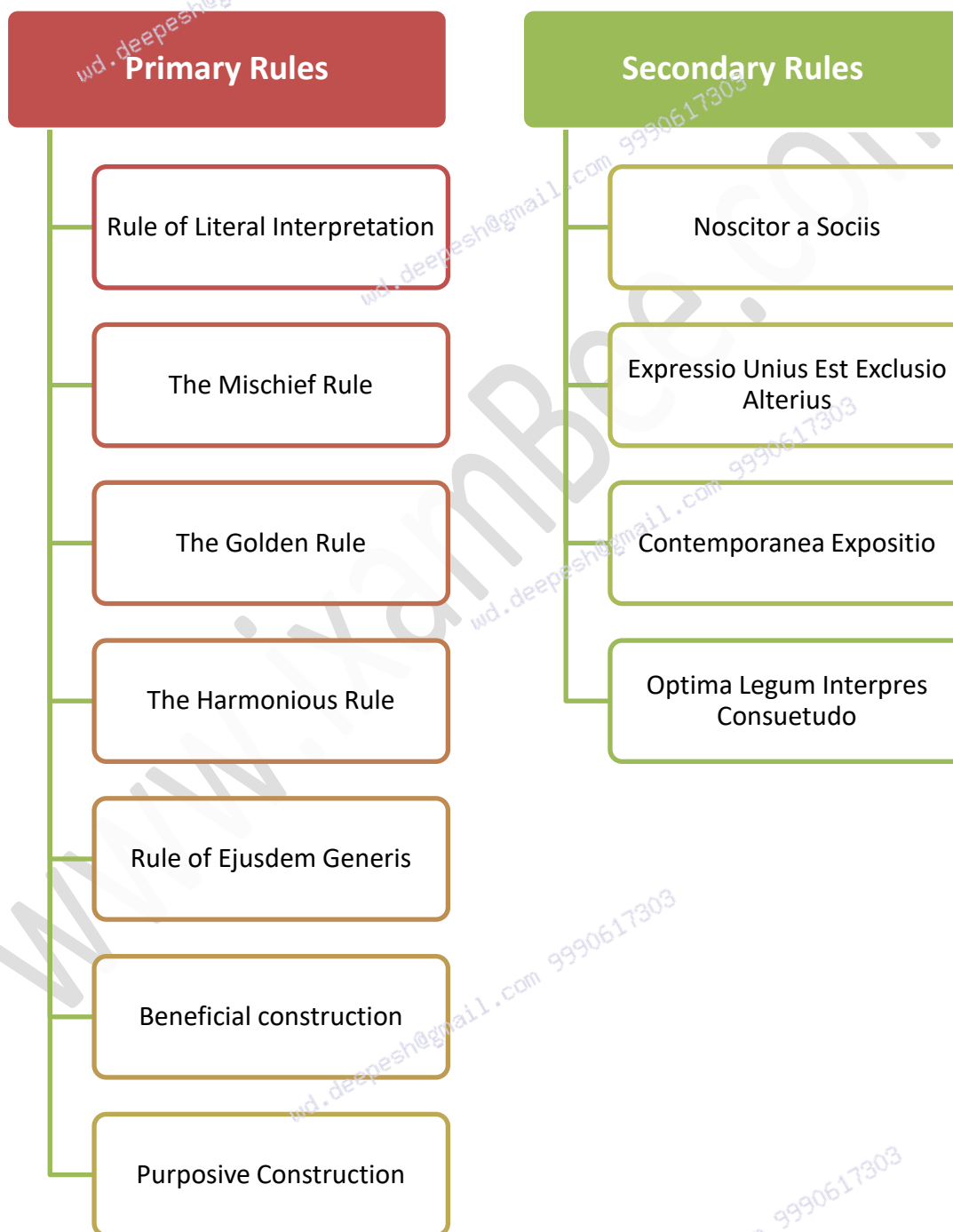


Study Notes

Interpretation of Statutes – Rules of Interpretation

Rules of interpretation

Interpretation of statutes is the correct understanding of the law and is a process which is commonly adopted by the courts for determining the exact intention of the legislature. The main purpose behind interpretation is to clarify the meaning of the words used in the statutes which might not be that clear. Rules for the Interpretation of the statute have been classified into Primary and Secondary Rules.



Primary Rules of interpretation

1. **Rule of Literal Interpretation**

This is also known as the Plain meaning rule or the Grammatical rule of interpretation. According to this rule, the statutes are to be interpreted using the ordinary or natural meaning of the language or the text of the statute unless the statute explicitly defines some of its terms otherwise. In other word, this rule is basically concerned with what the law says and not what the law means.

Judges cannot come up with the words and interpret according to the case basis because when the very language used in the statue is simple and the words therein, have only one meaning to it, then at that time the judges will use the literal rule of interpretation. When a word used in a statute is not defined in the statute then it must be given it plain meaning. If the word is clear, it must be applied, even though the intention of the legislature may have been different or the result is undesirable.

Essential conditions for the Literal Rule:-

- a. Usually, the interpretation section of the statute provides a special meaning for a term;
- b. In case, the technical words have not been assigned any specific meaning then they are given their ordinary technical meaning;
- c. The words cannot be inserted in the statute by implication;
- d. With the passage of time, the words undergo change in their meaning;
- e. Lastly, the words always acquire significance from their context.

Advantages of the Literal Rule:-

- a. Restricts the role of judges and provides no scope for them to use their own opinions and prejudices;
- b. Upholds the separation of power;
- c. The Parliament is recognized as the supreme law maker.

Disadvantages of the Literal Rule:-

- a. This rule ignores the limitations of the language;
- b. It creates loopholes in the law leading to injustice;
- c. The words used in the statutes may undergo changes in their meaning as time passes;
- d. It is based on the wrong assumption that the words have only one fixed meaning;
- e. Lack of clarity in the statute;
- f. The literal meaning of the statutory provisions were given more importance by the judges without taking into account the wider meaning of the context.

2. **The Mischief Rule or the rule of beneficial or purposive interpretation:**

This rule Acts as a savior in times of difficulty. The very purpose of this rule is to determine the intention of the legislator. The origin of this rule can be traced in the 16th Century case in the United Kingdom (Heydon's case). The Mischief rule was first propounded in the Heydon case by Lord Poke in the year 1584 and is therefore, also known as Heydon's rule.

The main aim or objective of this rule is to determine the mischief and defect that the statute in question has set out to remedy, and the ruling which would effectively implement this remedy.

The very focus or purpose of this rule is to curb or suppress the Mischief and advance the remedy. Therefore, this rule is known as the mischief rule. In order to discover the Parliament's intention, certain rules the judges' apply in statutory interpretations, which are known as the mischief rule. Further, this rule when applied by the judges gives them more discretion than the literal or the golden rule because it allows the judge to effectively decide the Parliament's intent. The legislative intent is determined by examining the secondary sources, such as, law review articles, committee reports, corresponding statutes etc.

Four things need to be considered always for true interpretation of all statutes. They are as under:-

- a. The common law that existed before the making of the Act;
- b. The mischief or defect for which the common law did not provide;
- c. The remedy the Parliament has resolved and appointed to cure the disease;
- d. The true reason of the remedy sought after.

Advantages of the Mischief Rule:-

- a. This rule is considered far more satisfactory way of interpreting Acts, by the Law commission, as opposed by the Golden or the Literal Rule.
- b. This rule usually avoids unjust or absurd results in sentencing.

Disadvantages of the Mischief Rule:-

- a. This rule is considered as an outdated rule as it has been in use since, the 16th century, at the time when common law was the primary source of law and the Parliamentary supremacy was not established;
- b. This rule gives too much power to the unelected judiciary, which is considered undemocratic;
- c. This rule makes the law uncertain;
- d. In the 16th century, the judiciary would often draft Acts on behalf of the king and were therefore, well qualified about the mischief the Acts were meant to remedy.

3. The Golden Rule of Interpretation

This rule is known as the Golden rule of interpretation because it solves all the problems of interpretation. It is approved and followed by eminent judges. It is also known as the British Rule of interpretation as it is a form of statutory interpretation which allows a judge to depart from a normal meaning of the word in order to avoid an absurd result. It is considered as a compromise between the literal rule and the mischief rule. It gives the words of a statute their plain, ordinary meaning, like the plain meaning rule, However, when this leads to an irrational result that is unlikely to be the legislature's intention, the judge can depart from this meaning. Further, in case of Homographs, where a word can have more than one meaning, the judge can choose the preferred meaning. If the word only has one

meaning, but applying this would lead to a bad decision, the judge can apply a completely different meaning.

This rule is also known as the **Rule of Reasonable Construction (*Ut Res MagisValeat Quam Pareat*)**. This rule is always used in two main situations:-

- a. When the meaning of the word is too narrow;
- b. When the word itself has ambiguity or absurdity;

According to this rule, the consequences and effect of interpretation deserves a lot of importance as they are the clues to the true meaning of the words used by the Legislature as well as its intention.

Criticism of the Golden rule

- a. There is infringement of the separation of power among the wings of the Government i.e between the judiciary and the Legislature;
- b. In case of absurdity in the statute this method if used;
- c. Lastly, the judges have the power to technically change the law by changing the meaning of the words in the statute.

4. The Harmonious Rule

This rule of construction is adopted in case of conflict between two or more statutes or between two or more parts of the provision of the same statute. According to this rule, every statute has a purpose or intent as per law and therefore, be treated as a whole. Only that interpretation is adopted which is consistent with all the provisions of the statute. However, when it is impossible to harmonize both the provisions, the court's decision regarding the provision shall prevail. The interpretation which results in hardship, injustice, inconvenience or anomaly is avoided and the one which supports the sense of justice is adopted. The interpretation which conforms to justice and fair play preventing injustice should be favoured by the Court.

In case there are two provisions in a statute, which are apparently in conflict with each other, then they should be interpreted such that effect can be given to both and that the construction which renders either of them inoperative and useless should not be adopted except in the last resort.

Important aspects of this Principle are:-

- a. The provisions which are contradicting in nature and which brings head – on clash between each other should be avoided by the Courts,
- b. The contradicting provisions should be interpreted in such a way, by the courts, that brings harmony to them;
- c. The very provision of one section cannot defeat the other provision;
- d. In cases, where the court fails to bring harmony to both the parties, it should at least interpret in such a manner where both the provisions are given effect as much as possible;

- e. Harmonising doesn't mean destroying therefore, the courts should keep in mind that the interpretation which reduces one provision to a useless number is not a harmonious construction.

Advantages of the Harmonious Rule

- a. The Mischief rule is seen as more satisfactory way of interpreting Acts, as opposed to the Golden rule or the Literal rule;
- b. This rule usually avoids unjust or absurd results in sentencing.

Disadvantages of the Harmonious Rule

- a. This rule gives too much power to the unelected judiciary which is argued to be undemocratic;
- b. This rule is considered to be out of date, as it has been in use since the 16th century, when common law was the primary source of law and the Parliamentary supremacy was not established.

5. The Rule of Ejusdem Generis

This means of the same kind and nature. The words are generally given their natural meaning unless it requires special meaning based on the context. Further, when the general words follow specific words of a distinct category, the general words should also be given restricted meaning of the same category. The intention of the Legislature on the Ejusdem Generis principle is that if the legislature intended general words to be used in unrestricted sense, it would not have bothered to use particular words at all.

Basic Principle

The basic principle which should be present in the case in order to apply the rule of Ejusdem Generies are:-

- a. There should be enumeration of the specific words in the statute;
- b. The general term always follow the specific word;
- c. There should be no different intention of the Legislature to the general terms;
- d. The subject of the enumeration should constitute a class or category;
- e. The class should not be exhausted by the enumeration.

6. Beneficial construction:

This rule of interpretation benefits individual and involves giving the widest meaning possible to the statutes. In case there are two or more possible ways of interpreting a section or a word, the meaning which gives relief and protects the benefits which are purported to be given by the legislation, should be chosen. In case of ambiguity the meaning which prevails over the benefit to the individuals should be adopted. Further, the Courts should be generous towards the person to whom benefits are conferred by the Statute. Therefore, the judges are supposed to give the widest meaning to the statute in order to protect the interest the parties.

7. Purposive Construction:

The purposive approach is sometimes referred to as purposive construction, interpretation, or the modern principle in construction and is an approach to the statutory and constitutional interpretation. According to this rule of construction, common law courts interpret an enactment i.e. a statute or a part of a statute or a clause of a constitution in light of the purpose for which it was enacted.

The Mischief rule is considered to be the historical source of purposive interpretation. As a form of replacement for the Mischief rule, the Plain meaning rule and the Golden rule, for determining cases, the Purposive rule of interpretation was introduced. This rule of interpretation is exercised when the courts utilize extraneous materials from the pre-enactment phase of legislation, including early drafts, committee reports, etc. It also involves a rejection of the exclusionary rule.

Criticism

- a. It fails to recognize the separation of power between the legislative and judiciary;
- b. For the purpose of interpretation it goes beyond the words within the statute which bestows the judges with considerable power as they look to extraneous materials for aid for interpretation of law.

Secondary Rules of Interpretation

1. **Noscitur a Sociis:** - The term Noscitur a Sociis literally means 'it is known from its associates'. The courts use the rule of language to interpret the legislation. This term means that when a word is ambiguous, its meaning may be determined by reference by the rest of the statute. In other words, the meaning of a word may be derived from its associate word.
2. **Expressio Unius Est Exclusio Alterius:-** This term means the express mention of one thing excludes all others. Further, when one or more things are specifically included in some list and others have been excluded, it automatically means that all others have been excluded.
However, this rule faces some limitations such as when a meaning is clear and when the exclusion is accidental.
3. **Contemporanea Expositio Est Optima Et Fortissima In Lege** - Contemporaneous exposition is the best and strongest in law. It is said that the best exposition of a statute or any other document is that which it has received from contemporary authority. So, whenever the language is ambiguous, the court pays due regard to the interpretation that the language of the Act has received over a long period of time. For the purpose of interpretation of statutes Circulars, Clarifications and Press notes issued by the Administrative Authorities should be used.

4. **Optima Legum Interpres Consuetudo:-** Custom is considered as the best interpreter of law. Custom is not simply created by the people through their constant performance of a certain act, but it is the constant performance of a certain act, with the intention of making a custom, which is approved by the competent legislator, thereby acquiring the force of law